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File No.: EXP202403325

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 13, 2023, a complaint was received by this Agency from A.A.A. (hereinafter, the complainant 1). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the complained party).

The reasons on which the complaint is based are as follows:

The complainant 1 states that the complained party has two TELEGRAM channels, "****CANAL.1" and "****CANAL.2," and that, on September 1, 2023, they posted a photograph with their image, as well as a phone number encouraging people from their channel to make calls. Furthermore, they state that it is associated with their amateur radio call sign.

Along with their complaint, they have submitted two prints in which it can be observed:

A photograph that shows "****CANAL.1" with the image of a person, the amateur radio call sign, a name, and a phone number.

A photograph of "****CANAL.2" with the image of a person, with text where the amateur radio number can be observed, among others.

- On September 19 and 29, 2023, and October 5, 2023, a complaint was received by this Agency from C.C.C. (hereinafter, the complainant 2). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the complained party).

The reasons on which the complaint is based are as follows:

The complainant 2 states that the complained party has two TELEGRAM channels and that, on September 18, 2023, they posted photographs of their person and their phone number, encouraging people to call them, and also states that it is associated with their amateur radio call sign, so that they can be identified or harassed by phone.

Along with their complaint dated September 19, 2023, they have submitted 3 prints from the channel "****CANAL.1" in which several photographs with the image of a person can be observed, and a photograph with several people, as well as texts with the name and surname of the complainant, amateur radio call sign number, phone number, among others.

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In the complaint submitted on September 29, 2023, they provide, among others, a screenshot in which a list of amateur radio numbers can be observed, with derogatory comments about them, and in another message, it can be seen: "list updated on September 18, 2023."

In the complaint submitted on October 5, 2023, complainant 2 states that the complained party would have posted a video on YouTube, and that at minute 0:12 of said video, their call sign as an amateur radio operator would be displayed.

They also state that in the link ***URL.1, such data would also be exposed.

Along with this complaint, they provide a screenshot in which the word "BLACKLIST" and a skull are overprinted on a text, and in which it can be seen that it is the same list that they already provided in their complaint dated September 29, 2023.

- On September 23, 2023, two complaints were received by this Agency, and on January 5, 2024, a complaint was received from D.D.D. (hereinafter, the complainant 3). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the complained party).

Complainant 3 states that the complainant has published, in the TELEGRAM group "****CANAL.2," among others, a message in which the amateur radio call sign of complainant 3 can be seen, as well as their name and data related to their health. Along with their complaint, they provide prints with

photographs from the group "****CANAL.2" where these messages can be seen.

Along with their complaint dated September 23, 2023, they provide an audio in which the name of complainant 3 can be heard, among other information.

Furthermore, in the complaint dated January 5, 2024, they state "(...)" providing two audios to substantiate it.

- On November 8, 2023, a complaint was received by this Agency from E.E.E. (hereinafter, the complainant 4). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the complained party).

Complainant 4 states that on November 1, 2023, in the TELEGRAM group "****CANAL.1," their name and surname, as well as their amateur radio call sign, address, and phone number, and photographs with their image are displayed.

Along with their complaint, they provide several prints with photographs from the group "****CANAL.1," and in one of them, the image of a person with name and surname, and the amateur radio call sign can be observed, and in another photograph, the name and surname, address, and date of birth can be seen, and in another of the prints, several phone numbers can be observed, along with their amateur radio call sign.

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- On February 14, 2024, and April 4, 2024, a complaint was received at this Agency from F.F.F. (hereinafter, the claimant 5). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the respondent). The claimant no. 5 states in their complaint from November 2023 that the respondent "(...)"

Along with their complaint, to substantiate it, they provide several photographs showing a mobile phone, which can be seen to belong to the channel "****CANAL.2", and a photograph featuring a person, along with text that includes their name and surname, and the amateur radio call sign number. In that same photograph, there is a second message that reads a complete address.

Additionally, in the other photographs, the image of the same person can be observed.

In the complaint dated April 4, 2024, the claimant no. 5 states that the respondent has published on their telegram account "(...)". Along with the complaint, they provide photographs from the telegram account "****CANAL.2" where this circumstance can be observed.

- On February 16, 2024, a complaint was received at this Agency from G.G.G. (hereinafter, the claimant 6). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the respondent). In their complaint, the claimant no. 6 states that the respondent "(...)"

Along with their complaint, they provide an audio recording in which it can be verified that they state their name and surname at minute 00:22, and at minute 1:31 of the recording.

- On February 25, 2024, a complaint was received at this Agency from H.H.H. (hereinafter, the claimant 7). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the respondent).

In their complaint, the claimant no. 7 states that the respondent has a TELEGRAM channel named "****CANAL.2" where they have uploaded a photograph featuring their image, along with their name and surname, phone number, and amateur radio name.

Along with their complaint, they provide, among other things, a screenshot of the TELEGRAM channel "****CANAL.2" where a photograph of a person can be seen, as well as their name and surname, phone number, and amateur radio number.

- On March 10, 2024, a new complaint was received at this Agency directed against B.B.B. with ***NIF.1 (hereinafter, the respondent), from an affected person (hereinafter, the claimant 8), due to the publication, on January 29, 2024, in the TELEGRAM group "****CANAL.2" of information related to their person.

Along with their complaint, they provide, among other things, photographs of messages sent via WhatsApp, as well as photographs from the TELEGRAM group "****CANAL.2" highlighting a photograph of a person, with the following message: "(...)"

They also provide another photograph, a screenshot from a mobile phone of the TELEGRAM group “***CANAL.2” where the mobile phone number and the amateur radio call sign “***REFERENCIA.1” can be seen.

- On March 31, 2024, a new complaint was received at this Agency directed against B.B.B. with ***NIF.1 (hereinafter, the respondent), from an affected person (hereinafter, the claimant 9), due to the publication, in the TELEGRAM channel “***CANAL.2” of their phone number, associated with their amateur radio call sign “***REFERENCIA.2” encouraging others to call them.

Along with their complaint, they provide a screenshot of “***CANAL.2” where several amateur radio authorization numbers can be seen, along with various phone numbers, including that of the claimant. They provide two more screenshots, one of which contains messages from “***CANAL.2” where a photograph of a person can be observed, as well as the list of phone numbers that had already been provided in the previous screenshot.

- On April 3, 2024, a complaint was received at this Agency from I.I.I. (hereinafter, the claimant 10). The complaint is directed against B.B.B. with ***NIF.1 (hereinafter, the respondent).

The claimant no. 10 states that, on page ***URL.2, data and images continue to be published, urging for their immediate removal and the initiation of a sanctioning procedure.

Along with the complaint, they provide 3 photographs featuring two people, and a photograph of a form with an address, which contains the personal data of claimant no. 10, and that of another person, with their address, date of birth, and a photo where the note “wants a fight” can be read.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint filed by claimants 1, 2, 3, and 4 was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

The forwarding of the complaint filed by claimant 1 was acknowledged on November 27, 2023, as stated in the acknowledgment of receipt that is part of the file.

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The transfer of the claim submitted by claimant 2 was received on November 27, 2023, as stated in the acknowledgment of receipt in the file.

The transfer of the claim submitted by claimant 4 was received on November 27, 2023, as stated in the acknowledgment of receipt in the file.

The transfer of the claim from claimant 3, which was carried out in accordance with the rules established in the LPACAP, by certified postal mail, was returned as “absent”; with a first delivery attempt on December 7, 2023, and a second delivery attempt on December 11, 2023.

No response has been received to these transfer documents.

THIRD: The admissions to processing of the claims occurred on the following dates:

On December 13, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 1 was admitted for processing.

On December 19, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 2 was admitted for processing.

On December 23, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 3 was admitted for processing.

On February 12, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 4 was admitted for processing.

On February 28, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 5 was admitted for processing.

On February 28, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 6 was admitted for processing.

On April 4, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 7 was admitted for processing.

On April 4, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 8 was admitted for processing.

On April 4, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 9 was admitted for processing.

On April 4, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by claimant 10 was admitted for processing.

FOURTH: On May 16, 2024, the Director of the Spanish Data Protection Agency decided to initiate sanctioning proceedings against the respondent,

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for the alleged infringement of Article 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR.

FIFTH: This initiation agreement, which was notified in accordance with the rules established in the LPACAP, was not collected by the respondent, being returned as unknown on May 29, 2024.

Finally, it has been published in the BOE on June 7, 2024.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Data Protection Agency considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: It is established that the respondent has two accounts on TELEGRAM named "****CANAL.1" and "****CANAL.2".

SECOND: It is established that on September 1, 2023, personal data of claimant 1 was published on the accounts "****CANAL.1" and "****CANAL.2", consisting of photographs with their image, as well as their phone number, amateur radio call sign, and a name.

THIRD: It is established that on September 18, 2023, personal data of claimant 2 was published on the account "****CANAL.1", consisting of photographs with their image, as well as their name and surname, phone number, and amateur radio call sign.

FOURTH: It is established that personal data of claimant 3 was published on the account "****CANAL.2", consisting of their name and amateur radio call sign. Additionally, there is an audio in which the name of claimant 3 appears.

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FIFTH: It is recorded that, on November 1, 2023, personal data of claimant 4 has been published on the account "***CANAL.1," consisting of photographs with their image, name and surname, amateur radio call sign, address, phone number, and date of birth.

SIXTH: It is recorded that on February 10, 2024, personal data of claimant 5 has been published on the account "***CANAL.2," consisting of name and surname, amateur radio call sign, address, and photographs with their image.

SEVENTH: It is recorded that, on the account "***CANAL.2," an audio has been published where, at minutes 00:22 and 1:31, personal data of claimant 6 is collected, consisting of name and surname.

EIGHTH: It is recorded that, on the account "***CANAL.2," personal data of claimant 7 has been published, consisting of a photograph with their image, name and surname, phone number, and amateur radio call sign.

NINTH: It is recorded that on January 29, 2024, personal data of claimant 8 has been published on the account "***CANAL.2," consisting of a photograph with their image, amateur radio call sign, and mobile phone number.

TENTH: It is recorded that, on the account "***CANAL.2," personal data of claimant 9 has been published, consisting of phone number and amateur radio call sign.

ELEVENTH: It is recorded that, on the account "***CANAL.2," personal data of claimant 10 has been published, consisting of photographs with images, name and surname of 3 individuals, address, and date of birth.

TWELFTH: Claimants 1 to 10 have filed a complaint with the AEPD regarding the respective disclosure of their personal data as recorded in the Proven Facts Second to Eleventh.

THIRTEENTH: There is no confirmation of compliance by the defendant with the provisional measure agreed upon in the initiation agreement, consisting of the suspension of the processing of personal data subject to the complaint through the removal of the content published on the defendant's Telegram account and notifying this Agency.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the defendant collects and retains, among others, the following personal data of individuals: name and surname, date of birth, amateur radio call sign, images of some of the claimants, address, among other processing activities.

On its part, Article 6.1 of the GDPR regulates the "lawfulness of processing."

III

Lawfulness of Processing

Article 6.1 of the GDPR “lawfulness of processing” establishes the circumstances that allow the processing of personal data to be considered lawful, stating:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

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The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

In the present case, various claims have been made against the respondent for publishing personal data such as names, surnames, images, addresses, and phone numbers, among others, of the claiming parties on two TELEGRAM channels.

It is not evidenced that the publication of the personal data of the claiming parties on the TELEGRAM channels of the respondent was carried out with the consent of the claiming parties, nor under any other legal basis provided for in Article 6 of the GDPR, which constitutes a violation of the aforementioned Article 6 of the GDPR.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, under the heading “General conditions for the imposition of administrative fines” which states:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the limitation period for infringements, Article 72 of the LOPDGDD, “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Sanction for the infringement of Article 6.1 of the GDPR

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For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered (paragraph a): for having published personal data consisting of names, surnames, images, phone numbers, and postal addresses that affected at least 10 claiming parties.
- Intentionality/Negligence in the infringement (paragraph b): in the present case, the intentionality in the processing of the personal data of the claiming parties seems clear, as the respondent publishes such data consciously, resulting in unrestricted access to anyone who accesses the TELEGRAM channels.
- Any previous infringement committed by the data controller or processor (paragraph e): it is noted that, on May 24, 2023, a resolution was issued in procedure no. EXP202210999, for similar facts, in which a fine of 5,000 euros was imposed.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating what is established in Article 6.1 of the GDPR, allows for the imposition of an administrative fine of 10,000 euros.

V

Adoption of measures

The infringements in the matter at hand may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with what is established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, this Agency may require the responsible party to, within the determined timeframe, adjust their actions to the personal data protection regulations, to the extent expressed in the Legal Grounds of this agreement.

In light of the analyzed circumstances, it is understood that the respondent carries out processing of personal data without a legitimate basis for doing so at the time of the publications. Therefore, and considering the dissemination of personal data, it is deemed that the continuation of the processing could

result in a very serious and irreparable detriment to the fundamental right to the protection of personal data of the claiming parties.

Consequently, it is appropriate to require the responding party to cease the processing of the personal data in question within the timeframe determined in the dispositive part, removing all data published on their social media profiles related to the claiming parties and adopting appropriate measures to ensure that similar events do not occur again.

It should be noted that in the agreement to initiate the present sanctioning procedure, it was agreed to impose as a provisional measure the immediate cessation of the publication of the personal data of the claiming parties, and to remove the data already published, to the extent that such publication may result in a very serious and irreparable detriment to the rights of the affected citizens, whose personal

data, including address and location, as well as phone number, are published openly. Therefore, in order to safeguard and guarantee the rights and freedoms of the claiming parties, the measure imposed is equivalent to making the provisional measure definitive.

On the other hand, in accordance with the aforementioned article 58.2 d) of the GDPR, the responding party is also required to notify this Agency within 10 days from the time this resolution becomes final and enforceable of the adoption of the imposed measures, as well as to adopt measures that ensure that, in the future, the data they publish has the consent of the data subjects or another lawful basis that legitimizes its dissemination.

The imposition of these measures is compatible with the imposition of an administrative fine, as provided for in article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this agency could be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct could lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO IMPOSE on B.B.B., with ***NIF.1, for an infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR, a fine of ten thousand euros (10,000 euros).

SECOND: TO MAKE DEFINITIVE the PROVISIONAL MEASURE agreed upon in the opening agreement of the present sanctioning procedure. Consequently, B.B.B., with ***NIF.1, is required, pursuant to article 58.2.d) of the GDPR, within 10 days from the time this resolution becomes final and enforceable, to prove to this AEPD that they have complied with the measures consisting of the withdrawal of the processing of personal data subject to the complaint through the removal of the content published on the Telegram accounts of the responding party, and

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that it refrain from publishing more personal data without the consent of the holders thereof.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of the LPACAP, within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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